

**From Object to Protocol:
A Genealogy of the Artwork as Specification**

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Abstract

Across the long history of art the locus of the work has migrated, in successive episodes, from the finished object toward the rule-bound specification. The intuition that an artwork is a singular artifact expressing an artist's interiority is a late, partial, historically specific configuration. Older regimes treated images as ritual instruments, dynastic technologies, devotional interfaces, and workshop products whose identity was fixed by function and rule rather than by individual hand. The conceptual and score-based art of the twentieth century made this older fact explicit by relocating the work into the certificate, the score, the instruction. Generative code art added editioned variability through deterministic seeds. A third, still emerging migration extends the same logic to model-mediated work, where the artwork resides in an executable package of prompts, reference assets, model recommendations, seed ranges, and licenses, navigated by a user and realized by a model. We name this contemporary form *latent score art* and treat it as a subcategory rather than as a synonym for AI art at large. We are explicit about evidential status: the first two migrations rest on a deep inventory of named, conserved works, while the third is grounded in a small number of real, externally verifiable instances (the trained-model and protocol works of Holly Herndon and Mat Dryhurst, and the autonomous system Botto) in which the generative system rather than any single output is the exhibited work, alongside in-development and illustrative cases. The third migration is therefore presented as an emerging category and an extrapolation of the protocol logic, not as a settled phenomenon on the level of the first two. The paper formalizes a *protocol* as a specification that is substrate-relative, bounded, transferable, editioned, and governed, and traces how each historical migration adds one of these properties to the inventory. We close with three threads of consequence: legal authorship, market structure, and aesthetic ontology. The legal frame remains narrow while the art-historical frame becomes thicker, and the two should be held apart. Markets must adapt to model drift, governance creep, and the buyer's question of what is actually owned. Aesthetic analysis must read training corpora, model versioning, and prompt grammar as media-specific facts. The object survives as one realization among many, while the work itself sits one layer up.

1. Introduction: The Object Was Never Stable

Modern common sense holds that an artwork is a finished object made by an artist who has poured an inner life into outward form. The painting hangs on the wall; the photograph rests in the print; the film is the cut, the song is the master. The work, on this picture, is what the visitor sees, the buyer takes home, the museum conserves. Anything that precedes the object is preparation; anything that follows it is reception. The object is the work.

Twenty-first-century life holds this intuition tightly enough to make it feel like the default human relation to images. It is not. The object intuition is a specific configuration, assembled over centuries, that became culturally dominant only in the late modern period. Before that configuration, and beneath it now, images functioned as ritual instruments, presence-bearing interfaces, dynastic technologies, devotional supports, and workshop products whose identity was set by liturgy, contract, or canon rather than by any single hand. The bounded expressive object is one of art's

many configurations among others.

The argument in this paper goes further than the recovery of older configurations. The locus of the work has been migrating, across long time, from the artifact to the specification. By *specification* we mean a rule-bound description of how to produce or select admissible realizations. The migration is uneven. It runs forward in conceptual and score-based art of the twentieth century, accelerates in generative code art of the late twentieth and early twenty-first, and reaches an emerging contemporary form in AI artworks where the trained model, the protocol, or the package of prompts, references, model recommendations, seeds, and licenses is the work. This third form is younger and less institutionally settled than the first two, and we hold it to that standard below. The image generated by such a work is a realization, and the realization passes through the protocol on its way to existing.

The deep-research survey that informed this paper considered four candidate theses for the contemporary moment: a *reconfiguration* thesis (AI art redistributes older functions rather than abolishing them), a *protocol* thesis (the locus of the work migrates from object to rule-bound specification), a *distributed-authorship* thesis (the novelty is exposure of the assemblage of artist, dataset, model, prompt, seed, user, platform), and a *market-structure* thesis (the executable package is the new salable unit). The four overlap, and they are not equivalent. Reconfiguration describes a rate of change. Distributed authorship names an attribution problem. Market structure names a commercial form. The protocol thesis describes the ontological move underneath all three: it tells us where the work is.

The argument is therefore neither anti-technological nor triumphalist. We are not claiming that AI tools complete art, and we are not claiming that they end art. We are claiming that they make explicit a property of art that has been operating, intermittently, for at least a century, and arguably for far longer. What was once visible only at the margins of conceptual art (the certificate, the score, the instruction) becomes mainstream when the artist's deliverable is an executable package and the buyer's possession is a license to instantiate.

2. Pre-Object Functions

The earliest evidence for human image-making does not depict a stable object-centered practice. It points instead to images embedded in cult, memory, and social coordination, with motives that remain epistemically underdetermined. Reading the modern object intuition backward into pre-history and concluding that cave images were the first paintings in the modern sense is a tempting move that the evidence will not support. They may have been. They may also have been ritual implements, mnemonic technologies, hunting protocols, or vision-supports for altered states. The interpretive frameworks proposed by Lewis-Williams (2002) and Leroi-Gourhan (1964) hold up well as hypotheses and weakly as conclusions. What the archaeology supports is the more cautious claim: image-making at depth was bound to use, place, and rite, in ways that do not reduce to autonomous expression.

The next layer makes the point sharper. Sacred and imperial regimes (Egyptian tomb programs,

Mesopotamian temple complexes, early imperial Chinese ritual bronzes, Byzantine icon canons, dynastic South Asian sculpture) treat images as instruments that hold up a cosmos, mediate divinity, secure dynastic continuity, or stabilize rule. The work in these regimes is inseparable from the function: a tomb relief is a tomb-relief, an icon is an icon, the same object recontextualized into a museum becomes a different cultural item without becoming a different artifact. Belting (1994) argues this distinction at length: many premodern images are *presence-bearing interfaces* before they are aesthetic objects, and the modern art-historical category sits on top of them as an external imposition.

Medieval workshop labor extends the point. Painters of altarpieces, manuscript illuminations, and church frescoes worked under canons of subject, posture, and material that constrained the result so tightly that recognizable individual hands fade in and out of the historical record. The work was the altarpiece-as-installed, the illumination-as-bound, the fresco-in-its-program. Anonymity in such regimes is a different distribution of authorship: the workshop, the patron, the order, and the canon together make the work, and the painter is one operator within that distribution.

Read against these regimes, the modern object intuition looks plainly local. It assumes that the artwork is fully present in the artifact, that production is reducible to a single named author, and that function sits external to identity. None of these assumptions hold in pre-object regimes. A tomb image is not fully present without the tomb. A workshop altarpiece is not fully present without the altar. A ritual mark is not fully present without the rite.

The pattern matters for the protocol thesis. If the work has often been a function-anchored, rule-governed product whose identity is set by canon, ritual, or commission, the modern object-centered configuration is the deviation from a longer rule. Specification has always been operating; it sometimes gets demoted to “preparation” while the object gets promoted to “the art.” The historical record makes the modern arrangement look provincial in time, however dominant it became in the institutions of the past two centuries.

These regimes invite no nostalgia. They were embedded in social orders we would now reject: slavery, theocracy, dynastic violence. The narrower point is enough. The question “what counts as the work?” has been answered very differently across history, and the answers that pre-date modern expressivism privilege the rule, the place, the function, the rite, the canon. They privilege the specification.

3. The Object Becomes Property, Then Genius

The configuration that produces the modern object intuition is recent. It assembled itself in stages between the Renaissance and the late nineteenth century, under specific institutional pressures.

Renaissance patronage personalizes the artist. Vasari’s *Lives* (1550, 1568) records a vocabulary of named masters and their distinctive hands. The Renaissance does not yet hand the artist sovereignty over the work, however. The artist operates inside contracts that specify subject, materials, dimensions, deadlines, even pigments. The work is a contracted object whose terms are set by the patron and whose execution is shared between master, workshop, and apprentices.

The named master matters; the named master remains one node inside a contracted production system.

Early modern markets shift the pressure. As Dutch genre painting, prints, and engraved reproductions reach urban bourgeois interiors, the artwork becomes a portable commodity. Studios begin producing for stocks rather than commissions. Pricing, attribution, and inventory become routine commercial practices. The artifact is now a thing a buyer can carry into a domestic interior; the work travels independent of its original context. This is the first move toward the object-as-such: the artwork as separable, transportable, owned, displayed, exchanged. Bourdieu (1984, 1996) traces the institutional consequences in his account of how taste markets organize legitimacy; the underlying ontological shift is more elementary. To trade a thing across contexts, the thing must be treatable as fully present in itself.

Romanticism completes the configuration. The artist becomes a singular interiority whose work expresses an inner truth not accessible by other means. Originality replaces fidelity to canon. Rupture replaces continuity with workshop tradition. The art object becomes the trace of a unique subjectivity that the viewer reconstructs across the encounter. By the later nineteenth century, the object intuition is fully assembled: the work is the artifact, made by a singular artist, expressive of an interior life, and tradable as property. Modernism intensifies this picture, even as it tests its limits.

The configuration is local. It depends on a market that supports portable commodities, an art-historical apparatus that records named individuals, a critical discourse that prizes interiority, and an institutional infrastructure (gallery, museum, salon, criticism) that consecrates particular objects as art. Without those supports, the configuration falls apart. With them, it dominates. By the early twentieth century, the dominance is so thorough that almost any non-object-centric practice (ritual mark, score, instruction, system) starts to look anomalous within the art world even though it sits closer to art's longer history.

The first major art movements to push against the object-centric configuration in the twentieth century did not so much invent the protocol as recover it from premodern regimes and update it for a market-saturated context. Their innovation, taken in long view, was a return to the older fact: the work is often a rule, and the artifact is its realization.

4. The First Migration: Conceptual and Score-Based Art

The precedent at the start of the century is Duchamp. With the readymade, and *Fountain* (1917) above all, the work became the artist's act of selection and designation rather than any act of making; the choice, the title, and the signature did the work, and the manufactured object was merely its occasion (de Duve, 1996). The conceptual and score-based practices of mid-century inherit this move and make it repeatable, turning a one-off gesture of designation into a standing specification that others can realize.

By the 1950s and 1960s, several practices begin to relocate the work from the object to the instruction. They differ in materials and ideology, and they converge on a structural move: the artist

authors a specification, and others (sometimes the artist, often not) realize it.

John Cage's 4'33" (1952) is canonical here. The score specifies a duration of silence to be performed on any instrument; the realization is whatever ambient sound enters the performance space. Cage's chance procedures (drawn from coin tosses, the *I Ching*, star charts) produce works whose realization is delegated to procedural systems. The work is the score, the procedure, the protocol. The performance is an instantiation. 4'33" is fully present whenever the score is performed, anywhere, by anyone.

Fluxus extends this approach into a movement. George Brecht's *Event Scores* (early 1960s) instruct a performer (or a reader, or a viewer) to undertake brief, often domestic actions. La Monte Young's *Composition 1960 #10* reads in full: "Draw a straight line and follow it." Yoko Ono's *Grapefruit* (1964) is a published collection of instruction pieces. The Museum of Modern Art's documentation of Fluxus repeatedly notes that the scores were intended to be performed by anyone with interpretive freedom, and that the score's identity was not exhausted by any particular performance. The protocol is the work; performances are realizations.

Sol LeWitt's wall drawings make the move explicit in a market context. LeWitt (1968) writes that "the idea becomes a machine that makes the art." From 1968 onward, his wall drawings are conceived as instructions, often diagrammatic, to be executed by draftspeople on a designated wall. The collector or institution acquires a certificate of authenticity and the diagrammatic instructions; on installation, the wall drawing is realized by hands other than LeWitt's. SFMOMA's documentation describes LeWitt purchases as involving certificate plus instructions, with the visible drawing executed on site, occasionally re-executed at different locations as the institution changes premises. The Whitney's documentation reaches the same conclusion: the work is the instruction set, the certificate, and the right to realize.

Lawrence Weiner's textual works push further still. Many of his pieces are presented as printed sentences ("A 36" x 36" REMOVAL TO THE LATHING OR SUPPORT WALL OF PLASTER OR WALLBOARD FROM A WALL," 1968) that the artist permits to be realized, not realized, or realized differently in different contexts. His "Statement of Intent" leaves these options to the receiver. The work is a textual specification with explicit realization permissions.

Across these practices, several features recur. The work has clear identity prior to any execution; it is announced, signed, dated, sometimes published. The realization is delegated, often to non-artists, with rules that govern admissible variation. The artifact, when there is one, counts as a realization rather than the work. The institutional apparatus is rebuilt around this fact: certificates of authenticity, edition rules, performance rights, installation protocols. The collector who acquires a LeWitt does not own a particular wall drawing; the collector owns the right and instructions to realize one.

This is the first migration. Paper, language, and persuasion are enough to drive it. Many of the resulting pieces produce striking visible realizations, so the object remains in play. The thing the migration relocates is the identification of the work with any one realization. The work sits up one layer, in the score, the instruction, the certificate, the textual specification. From this layer the work

generates artifacts; the artifacts do not generate the work.

The institutions that own and conserve these works have to organize themselves around protocols rather than artifacts. Museum registrars maintain certificate files. Conservators specify re-execution conditions. Curators choose which performance, of which score, by which performer, will represent a piece in a given exhibition. The protocol becomes the unit of curatorial care. Half a century has passed since the practice took shape, and the gallery system has long since absorbed it. Contemporary moves into AI-mediated work do not arrive in an institutional vacuum; they arrive into a system that already knows how to handle scores.

5. The Second Migration: Generative Code Art

The second migration begins with practices that delegate realization to procedural systems running on computers. The earliest sustained example is Harold Cohen's AARON program, developed from the late 1960s into the 2010s, which produces drawings autonomously according to rules that Cohen authored and refined over decades. AARON generates the realizations; Cohen authored the system. The work, in any sustained art-historical sense, is the system, with its rule sets, its color logic, and its compositional grammar. Individual prints are realizations.

Through the 1980s and 1990s, generative practices proliferate in contexts often outside the gallery system: the demoscene, software art, glitch art, evolutionary art, agent-based animation. Galanter (2003) proposes a working definition of generative art as practice in which the artist uses a system (rules, code, randomness, autonomous machines) to produce or contribute substantially to a work. Generative art is therefore continuous with the conceptual and score-based migration, with the substrate moved from human performers and instruction sheets onto procedural systems running on hardware.

Two contemporary platforms make the protocol-character of generative code art explicit and tradable. Art Blocks (founded 2020) hosts long-form generative art on the Ethereum blockchain. The artist publishes a script; collectors mint outputs from the script; each mint passes a unique hash, derived deterministically from the transaction, into the script as the seed. The output is fixed once minted: the same script and seed produce the same image. Each mint is therefore a deterministic realization within the artist's specified system. Art Blocks documentation describes the artist's deliverable as an "algorithmic system" rather than a set of images, and the description is precise.

fxhash (founded 2021) extends the model with explicit support for "open-form" generative art, where realizations may evolve over time, accept user inputs, or interact with environment data. The open-form documentation distinguishes between fixed-iteration tokens (each token corresponds to one rendered output) and more elaborate forms in which the rendered state continues to change after mint. Across both modes, the work is the script plus the edition logic plus the seed-handling rules; the rendered output is what one collector receives at a particular point in time.

This second migration adds three properties not yet visible in score-based art:

- (1) **Determinism.** Given a script and a seed, the realization is fixed and reproducible. The variability admitted by the protocol is itself rule-governed.
- (2) **Editioning at scale.** Generative platforms can issue thousands of realizations from a single specification, each different and each within the bounded space defined by the script. The notion of an edition expands from a hand-pulled print run to a deterministic family of outputs.
- (3) **Substrate visibility.** The script and the runtime are visible (open source on chain, in many cases) and become objects of interest in their own right. Collectors and critics study scripts as part of the work, alongside the rendered tokens.

What does not change is the basic structural fact established by Cage, Brecht, LeWitt, and Weiner: the work is the specification; the rendered output is a realization. Generative code art makes that fact visible at a new institutional scale (the platform), with new technical guarantees (deterministic realization), and a new economic form (on-chain edition logic). The move was already there. Generative code art industrializes it.

The platform infrastructure adds something specific. By holding the script, the seed-derivation rules, and the minting log together in a public ledger, platforms like Art Blocks turn the protocol into an inspectable, durable, transferable object in its own right. The historical anxiety of conceptual art around the certificate (is the certificate the work, or evidence of the work?) dissolves under the new infrastructure: the script is the work, the chain is the certificate, and the realization is the rendered token. Whether or not blockchain platforms persist, this clarifying move is durable. Subsequent generative practices, including the AI-based ones we discuss next, can reuse it.

6. The Third Migration: Latent Score Art

The third migration extends the protocol structure into model-mediated generation. The artist authors a specification (prompt, reference assets, negative prompt, model recommendation, seed range, edition rules, license). The substrate is a generative model (Stable Diffusion, Midjourney, Flux, an audio or video model). The collector or audience runs the protocol against the substrate, often with their own configuration choices, and obtains a realization. We call this form *latent score art*.

The defining structural fact: the package is the work. The work's identity does not sit in the prompt alone, the rendered image alone, the model alone, or the seed alone. It sits in the assembled, signed, editioned package. The artist's signature attaches to the specification. The collector's possession is a license to instantiate the specification under terms the artist has set. The realization is one image (or one film, or one sound), or a family of them, drawn from the bounded possibility space the specification opens.

The bundle taxonomy can be set out as a one-to-one mapping with older specification-based forms:

Component	Specification analogue
Prompt	Score, textual instruction
Negative prompt	Constraint clause
Reference assets (images)	Visual canon, stage design
LoRA / adapter	Style sheet, rehearsal annotation
Model recommendation	Designated instrument
Seed or seed range	Performance index, edition number
Edition rules	Print-run policy
License terms	Performance rights
Versioned package	Edition certificate
Generated artifact	Realization, instantiation, performance

Several entries deserve comment. The *model* is the substrate, equivalent to the “designated instrument” of a Cage or Brecht score: just as a score for piano cannot be performed identically on cello, a prompt-score for Stable Diffusion 1.5 cannot be performed identically on Midjourney v6. The substrate is part of the work. The *seed* is equivalent to the performance index of an edition: it picks one realization out of the population the protocol admits. The *LoRA or adapter* is equivalent to a rehearsal annotation: a constraint or training that biases the substrate toward the protocol’s intended grammar. The *license* is equivalent to performance rights: it specifies who may instantiate, where, how often, and for what economic purpose.

The category *latent score art* is narrower than *AI art* in general. Many AI works are sold as static images (rendered once by the artist, signed, editioned, exhibited as artifacts). Those works participate in the older configuration where the artwork is the rendered object, and the practice has its place. The category we mean here picks out something different: the work’s identity is the executable specification, and the rendered output is acknowledged, by artist and collector, as one realization among a population.

A caution about evidential status is owed before the examples. The first two migrations rest on a deep inventory of named, dated, institutionally conserved works, and the reader can check them. Latent score art is younger, and the strict commercial form we describe (an artist ships a signed, editioned package and a buyer runs it against a designated substrate to obtain a licensed realization) is still consolidating rather than settled. We therefore treat the third migration as an *emerging* category, evidenced by a small number of real, externally verifiable works in which the generative system or trained model, rather than any single rendered output, is the exhibited and acknowledged artwork. The structural lineage from score-based and generative code art is clear; the market and conservation conventions are not yet fixed.

Three real works anchor the category. Holly Herndon and Mat Dryhurst’s *xhairymutantx* (2024), commissioned for the Whitney Biennial and hosted on the Whitney’s artport, is a trained text-to-image model fine-tuned on deliberately distorted portraits of Herndon. The work is the model and its governing concept; visitors enter prompts and the model returns warped realizations, which

the project then feeds back into the wider training ecology. No single rendered image is the work; the model and its protocol are (Whitney Museum of American Art, 2024). The same artists' *The Call* (Serpentine, 2024 to 2025) trains choral AI models on recordings from fifteen United Kingdom community choirs, presents the training protocols and collectively created materials as the artefacts, and binds the work to a Data Trust that distributes rights between choir contributors and model users. Governance is constitutive of the work, not paratext around it (Serpentine Galleries, 2024). *Botto* (2021 onward), conceived by Mario Klingemann with the software collective ElevenYellow and governed by the BottoDAO, is an autonomous generative system whose weekly outputs are filtered by a community taste model and minted; its 2024 Sotheby's exhibition sold the system's realizations while the system itself remains the standing artwork (Sotheby's, 2024). These three differ in important ways (one foregrounds the model, one the governance protocol, one the autonomous pipeline), and none is yet a turnkey buyer-runs-the-package product. They share the structural fact that matters here: the conserved or exhibited work is a specification on a learned substrate, and the rendered output is a realization.

The institute's own practice belongs in this section as illustration, not as evidence, and we mark it as such. The Piatra Prism project, the institute's studio for generative film, image, and game work, is a development-stage attempt to build a work of this kind rather than a conserved instance of it. The intended deliverable in a Prism project is a *world-generation kit*: the character grammar (reference faces, body specifications, costume sheets), the shot grammar (lens, light, color logic), the scene-generation rules, the model recommendations, the seed protocols for repeatability, and the license that governs commercial and non-commercial reuse. A buyer would render the film at a moment of their choosing, with their preferred run-time substrate, within the rules the kit defines, so that different renderings are different performances of the same work. The lineage runs straight from Brecht's event score and LeWitt's instruction set, with the substrate moved onto contemporary models. We describe Prism to make the strict package form concrete, and we do not present it as a realized artwork; its existence as a conserved work is a goal, not a datum. A further illustrative case, deliberately hypothetical, makes the form vivid in another medium: a music protocol might specify a prompt grammar, a recommended audio model, a tempo range, instrument substitutions, and seed groupings, so that each rendered track is a realization and the work is the protocol. We offer it as a thought experiment, not as an existing work.

The novelty here is not structural. The move from object to specification has been working for sixty years inside the gallery system. What is new is the substrate. The model is opaque, statistical, trained on vast corpora, and continuously updated. Two issues follow that classical scores avoid. First, *substrate drift*: a Stable Diffusion 1.5 prompt does not perform identically on Stable Diffusion 3, and the same prompt may produce very different results across model updates. Second, *substrate opacity*: the realization is not deterministic in the way an Art Blocks script is, and prompts are not as transparent as Fluxus event scores. We return to both in section 9.

Real differences, but they leave the structural claim intact. They make protocol design harder and they leave the artist's task untouched in form. The artist is authoring a bounded specification for realization on a designated substrate, with rules, edition logic, and license. That is the protocol.

The contemporary specificity is that the substrate is a learned model, the bounding is partly statistical, and the license must address conditions (such as model availability and training-data lineage) that earlier scores did not face.

7. Defining the Protocol

The protocol concept can now be stated more precisely. A *protocol*, in the sense relevant to this paper, is a rule-bound specification with five properties:

1. **Substrate-relative.** The protocol designates an execution medium: a body, a performer, an interpreter, a runtime, a model. Realization on a different substrate is, by default, a different work. Substrate change is allowed only if the protocol explicitly permits it.
2. **Bounded.** The protocol declares which variations between realizations are admissible. A Brecht event score that says “draw a straight line and follow it” admits enormous variation in scale, place, and time, and excludes drawing a curve. An Art Blocks script admits only the realizations its code can generate from valid seeds.
3. **Transferable.** The protocol can be performed by parties other than the author. This is the property that distinguishes a protocol from a private working method. Score-based art turns it into a public commitment; certificates of authenticity and edition rules institutionalize it.
4. **Edited.** The protocol determines a population of realizations, finite or infinite, with rules for indexing them. An edition is the protocol’s mode of existence in time.
5. **Governed.** The protocol bears explicit rights and use conditions: who may instantiate, under what terms, for what economic purpose, with what attribution. These conditions are part of the work, because they bound what realizations are licit. The license sits inside the ontology, a constituent of the work rather than paratext around it.

Each historical migration we have traced added one or more of these properties to the inventory. Pre-object regimes already operated under substrate-relativity, boundedness, and governance, embedded in ritual, canon, and institution; they did not always hold explicit transferability or formal editioning. Score-based art added explicit transferability and formalized boundedness in language. Generative code art added deterministic editioning and made substrate-relativity transparent through inspectable code. Latent score art adds large-scale, model-mediated editioning and forces governance to become elaborate (license, model versioning, training-data attribution).

The frame works diagnostically. Asked whether a given AI work is a latent score artwork or a static AI image, we examine the five properties. If the artist has signed and editioned a substrate-relative, bounded, transferable, governed specification, and the rendered image is one realization of it, the work belongs to latent score art. If the artist signs and sells a single rendered image while keeping the specification private, the work belongs to the older object configuration with new tools. Both are legitimate practices. They are different objects in the ontology.

The frame also helps us read older works. Cage’s 4’33” is straightforwardly a protocol: substrate-

relative (any instrument), bounded (silent for the indicated duration), transferable (any performer), editioned (each performance), governed (rights through Cage's publisher). LeWitt's wall drawings are protocols. So are Art Blocks scripts. So are working models in algorithmic music. The migration this paper describes is the spread of an old ontology across new substrates.

8. Consequences

The protocol thesis has consequences in three registers: legal, market, aesthetic.

8.1 Legal authorship

The contemporary legal frame is narrower than the art-historical frame. The U.S. Copyright Office (2023) has held that prompts alone, in the absence of further selection, arrangement, and authorship by a human, do not provide sufficient creative control to ground copyright. At the same time, the Office acknowledges that human selection, arrangement, editing, and incorporation of one's own material can ground protectable authorship in the resulting work. Other jurisdictions are working out related positions.

Two errors should be avoided here. The first error treats the legal frame as the art-historical answer. Copyright is one institutional response, optimized for adjudication and enforcement. It does not exhaust the question of who or what makes a work. Even before AI, copyright treated ghost-written texts and large collaborative films in ways that did not match art-historical attribution practices.

The second error runs the other way: the legal frame can be ignored because the art-historical frame is thicker. Latent score artworks circulate through markets, contracts, and institutions that need legal handles. The protocol thesis suggests a working position. A latent score artwork has at least four sources of authorship: the artist who designs the specification, the dataset whose statistical regularities are encoded in the substrate, the model whose weights generate realizations, and the licensee whose configuration choices select among admissible realizations. A legal frame that recognizes the first and the fourth (artist's protocol, licensee's selections) and treats the second and third as instrument-like is workable. It also sits closer to the art-historical thickness than a frame that treats the rendered image as authorless because no one held a brush.

8.2 Market structure

Three market problems are characteristic of latent score art. First, *prompt decay*: a Midjourney update or a Stable Diffusion checkpoint change can degrade or transform a previously well-tuned prompt's behavior. Reports of prompt-marketplace volatility (El País 2025) make the point cheaply: if the work is a prompt sold for use against a specific commercial model, model updates can erode its value without warning. The remedy is to treat the substrate as part of the protocol and to specify, in the package, which model versions are valid execution targets. Open-weight models with reproducible checkpoints are particularly suitable.

Second, the *buyer's question*: what does the buyer actually own? The plausible options form a ladder of robustness:

- A bare prompt pack (text only): cheap, copyable, fragile.
- A licensed generation kit (prompt, references, recommended seeds, license): better, and the license has to define the substrate.
- A limited edition score (numbered package, with formal edition rules and certificate): art-market-shaped, robust against copying through certificate provenance.
- A subscription canon kit (the package plus periodic updates as substrate evolves): mitigates substrate drift.
- An on-chain edition (script, weights or model reference, license, all hashed and registered): robust attribution and provenance.
- A boxed physical edition (printed score, physical assets, certificate, possibly hardware substrate): strongest prestige signal, closest to gallery practice.

These options compose. Most viable latent score artworks will combine licensed kits with subscription updates and certificate-based editions. The market form is still emerging, and the protocol thesis is descriptive rather than prescriptive: the designs that survive will be the ones that successfully bound substrate drift while preserving editionability.

Third, *governance creep*: the license and metadata that govern a latent score artwork are part of the work in our framework. As legal and platform constraints on training data, model licenses, and end-use change, the package's governance layer has to evolve. A latent score artwork is therefore a more administered object than a Cage score, and the structural similarity to Cage holds: in both cases, the rights and conditions of performance are part of the work's identity.

8.3 Aesthetic ontology

Reading latent score art well requires reading the substrate. Style is now visibly inherited from training corpora, and the artist's hand is one factor among many. A model trained on a particular distribution of art-historical reproductions will render certain tendencies even when the prompt does not request them; another model with a different training distribution will render others. To analyze a latent score artwork without analyzing its substrate is to leave half the work unread. This is medium-specific criticism, in the line of Greenberg, Krauss, and Manovich, applied to a substrate that is statistical and learned rather than chemical and mechanical.

The category *latent space*, used carefully, names a real feature of the substrate: the high-dimensional internal representation along which the model interpolates. Used sloppily, it becomes a metaphor that obscures what the model is doing. A protocol-aware criticism resists the metaphorical drift and asks how the protocol uses the substrate's specific representations: what neighborhoods it visits, what attractors it invokes, what regions of the model's distribution it amplifies. The good prompt-score takes account of these features deliberately.

9. Where the Migration Strains: Opacity, Drift, and Dead Platforms

The protocol thesis describes a real migration. It also has limits, and naming them belongs to the same intellectual register as the thesis.

Opacity. A Fluxus event score is fully transparent: anyone reading it knows what counts as a realization. A LeWitt instruction is mostly transparent: the diagram constrains realization tightly. An Art Blocks script is technically transparent (the code is on chain) even when its visual output is hard to predict. A prompt against a closed-weight model is opaque on two fronts: the prompt's interaction with the model is not fully predictable, and the model itself is not inspectable. Latent score artworks are therefore harder to read as protocols, and the artist's specification cannot guarantee outcomes the way a deterministic script can. The argument, on aesthetic and ethical grounds, is for preferring open-weight models when the work's identity is meant to be the protocol.

Substrate update. Models change. A protocol that depends on a specific version of a closed model is hostage to the operator's update cycle. Open-weight checkpoints address this by enabling reproducible substrates, and the operational and legal infrastructure for long-term archiving of models remains undeveloped. Conservation of latent score art is, today, an open problem.

The persistence of the object. Many AI works will continue to be made and sold as static images, in the long object configuration. Those works retain their integrity inside their configuration. The protocol thesis describes a different site, and it is the site at which AI is changing what art is. Latent score art is the narrower category where the change is visible.

The legal narrowing. The current legal frame's narrow account of authorship in AI works obstructs robust contracts around latent score artworks, particularly in jurisdictions that do not recognize selection and arrangement as authorship. The art-historical frame is thicker, and it pays no royalties. Practical work in this area requires careful drafting that anticipates judicial and regulatory drift.

Market ephemerality. Prompt marketplaces, NFT platforms, and model-sharing hubs may not be durable institutions. The history of digital art is full of dead platforms taking work with them. The institutional frame for latent score art is still being built, and it remains unclear which substrates and platforms will persist long enough to support archival and curatorial care of the kind museums apply to LeWitt or Cage.

The limits do not invalidate the thesis. They locate it. The migration from object to protocol is real, uneven across substrates, contested in courts, and dependent on infrastructure whose long-term shape is open.

10. Conclusion: From Object to Protocol

The migration this paper describes leaves the art object in place. The object survives. It is rendered, exhibited, framed, and sold. It will continue to be. What changes is the location of the work. In premodern regimes, the work was the function-anchored, rule-governed product whose identity sat in canon and rite. In modern object regimes, the work was the artifact and the artist's hand. In

conceptual and score-based art, the work climbed up to the score and the certificate. In generative code art, it moved further into the script and the seed-handling logic. In latent score art, the work is the executable package: prompt, references, model, seeds, edition rules, license.

Said this way, the migration is a recentering rather than a rupture. The object did not disappear; it became one realization among many. The artist's task widens beyond the production of finished artifacts. Increasingly, the artist authors a bounded generative system and the rights that govern it. The collector's possession includes a license to instantiate alongside whatever thing hangs on the wall. The institution's curatorial unit becomes the protocol, with its admissible realizations, its conservation conditions, and its governance, and the artifact is one item it holds.

For an institute like Piatra, the shift reframes practice as a goal to build toward. The Prism studio's intended deliverable is the world-generation kit, with its references, its model recommendations, its seed protocols, and its license. If realized, the audience would render one realization, or many, each a performance of the work, and the work would persist across realizations in the protocol that governs them. We name this as a direction of in-house work, not as an instance already standing in the record; the real instances that anchor the category are the trained-model and protocol works discussed in section 6.

A reader who finishes this paper might fairly ask whether anything is left of the modern intuition that the artwork is a finished object made by an artist who has poured an inner life into outward form. The answer is yes, with one accent. Some works still are that, and will continue to be. Many of the works that matter most in the next decade will sit one layer up. They will be specifications. The interior life of the artist will still be in the work, encoded in a rule rather than a brushstroke, in a protocol rather than an object. The genealogy in this paper suggests, on balance, that this is art's ordinary historical condition. The object configuration was the exception. The protocol is the longer rule.

References

- Belting, H. (1994). *Likeness and Presence: A History of the Image before the Era of Art*. University of Chicago Press.
- Benjamin, W. (1936). The Work of Art in the Age of Mechanical Reproduction. In H. Arendt (Ed.), *Illuminations* (1968). Schocken.
- Bourdieu, P. (1984). *Distinction: A Social Critique of the Judgement of Taste*. Harvard University Press.
- Bourdieu, P. (1996). *The Rules of Art: Genesis and Structure of the Literary Field*. Stanford University Press.
- Brecht, G. (1963). *Water Yam*. Fluxus.
- Cage, J. (1961). *Silence: Lectures and Writings*. Wesleyan University Press.
- Cohen, H. (1995). The Further Exploits of AARON, Painter. *Stanford Humanities Review*, 4(2), 141–158.

- Danto, A. C. (1981). *The Transfiguration of the Commonplace*. Harvard University Press.
- de Duve, T. (1996). *Kant after Duchamp*. MIT Press.
- Dickie, G. (1974). *Art and the Aesthetic: An Institutional Analysis*. Cornell University Press.
- El País. (2025, April 8). Se venden y se compran instrucciones para las IAs: Así son los mercados de prompts. *El País*.
- Fluxus collection documentation. The Museum of Modern Art. Accessed 2026.
- Galanter, P. (2003). What is Generative Art? Complexity Theory as a Context for Art Theory. In *6th Generative Art Conference Proceedings*.
- Gell, A. (1998). *Art and Agency: An Anthropological Theory*. Clarendon Press.
- Greenberg, C. (1960). Modernist Painting. *Forum Lectures*. Reprinted in *The Collected Essays and Criticism, Volume 4* (1993). University of Chicago Press.
- Herndon, H., & Dryhurst, M. (2024). *xhairymutantx*. Whitney Biennial and Whitney artport. Whitney Museum of American Art. <https://whitney.org/exhibitions/xhairymutantx>. Accessed 2026.
- Krauss, R. (1986). *The Originality of the Avant-Garde and Other Modernist Myths*. MIT Press.
- Leroi-Gourhan, A. (1964). *Le geste et la parole*. Albin Michel.
- LeWitt, S. (1968). Paragraphs on Conceptual Art. *Artforum*, 5(10), 79–83.
- Lewis-Williams, D. (2002). *The Mind in the Cave: Consciousness and the Origins of Art*. Thames and Hudson.
- Manovich, L. (2018). *AI Aesthetics*. Strelka Press.
- Ono, Y. (1964). *Grapefruit: A Book of Instructions and Drawings*. Wunternbaum Press.
- Serpentine Galleries. (2024). *Holly Herndon & Mat Dryhurst: The Call*. Serpentine North, 4 October 2024 to 2 February 2025. <https://www.serpentinegalleries.org/whats-on/holly-herndon-mat-dryhurst-the-call/>. Accessed 2026.
- Sol LeWitt wall drawing documentation. San Francisco Museum of Modern Art and Whitney Museum of American Art, accessed 2026.
- Sotheby's. (2024). *Exorbitant Stage: Botto, a Decentralized AI Artist*. Exhibition and sale, October 2024. Botto conceived by M. Klingemann with ElevenYellow, governed by the BottoDAO (active 2021 onward).
- Strathern, M. (1988). *The Gender of the Gift: Problems with Women and Problems with Society in Melanesia*. University of California Press.
- U.S. Copyright Office. (2023). *Copyright Registration Guidance: Works Containing Material Generated by Artificial Intelligence*. Federal Register, 88(51), 16190–16194.
- Vasari, G. (1568). *Le Vite de' più eccellenti pittori, scultori e architettori*. Florence: Giunti.

Weiner, L. (1968). Statement of Intent. Reproduced in *Lawrence Weiner: As Far as the Eye Can See*. Whitney Museum of American Art (2007).

Young, La M. (1960). *Composition 1960 #10 to Bob Morris*. In *An Anthology of Chance Operations* (J. Mac Low and La M. Young, Eds., 1963).

Zylinska, J. (2020). *AI Art: Machine Visions and Warped Dreams*. Open Humanities Press.

Art Blocks platform documentation. <https://docs.artblocks.io>. Accessed 2026.

fxhash open-form documentation. <https://docs.fxhash.xyz>. Accessed 2026.

PromptBase prompt marketplace. <https://promptbase.com>. Accessed 2026.